

of time, a centralised action for revocation of a European patent to be brought before and decided by the EPO.

Opposition is an **independent procedure** following the grant procedure (T 198/88, OJ 1991, 254). It is not designed to be an extension of the examination procedure (G 1/84, OJ 1985, 299). As explained in G 9/91 and G 10/91 (OJ 1993, 408 and 420), it takes place at a point in time when the proprietor is enjoying in each designated contracting state the same rights as would be conferred by a national patent granted in that state (Art. 64 EPC). The relief sought by the opponent is not, as in traditional pre-grant opposition, refusal of the patent application but revocation of the patent as granted (in its entirety or in part) with effect ex tunc in all designated contracting states (Art. 68 EPC). Furthermore, the grounds for opposition (Art. 100 EPC) being limited to and essentially the same as the grounds for revocation under national law (Art. 138 EPC), the concept of post-grant opposition under the EPC differs considerably from that of pre-grant opposition. The opposition procedure before the EPO thus has several important features more in common with the concept of the traditional revocation procedure and its effect is more similar to that of such a procedure. This characteristic is further emphasised by the addition at a late stage in the preparation of the EPC of the possibility to oppose a European patent even if it has been surrendered or has lapsed for all contracting states (Art. 99(3) EPC 1973; see R. 75 EPC and also T 606/10). As opposition is an independent procedure which takes place after the grant procedure, a document considered in examination proceedings is not automatically scrutinised in opposition or opposition appeal proceedings, even if quoted and acknowledged in the contested European patent (T 198/88, OJ 1991, 254).

The opposition procedure is a purely administrative procedure. It differs fundamentally from the appeal procedure, which must be regarded as a judicial procedure and is, by its very nature, less investigative (see G 7/91 and G 8/91, OJ 1993, 356 and 346; G 9/91, OJ 1993, 408). Unlike an appeal, opposition has neither suspensive effect nor the effect of transferring the case to a superior instance (see T 695/89, OJ 1993, 152).

Post-grant opposition proceedings under the EPC are in principle to be considered as **contentious** proceedings between parties who normally represent opposing interests and who should be treated equally fairly (G 9/91 and G 10/91, OJ 1993, 408 and 420). As soon as the notice of opposition has been filed, the procedure automatically becomes bilateral, no matter whether the opposition is valid, admissible or allowable. The Convention does not provide for a decision by an opposition division "to end the ex parte proceedings" (T 263/00). R. 79(1) EPC (R. 57(1) EPC 1973) requires the opposition division to communicate the opposition to the proprietor of the patent, and the Guidelines D-IV, 1.5 (March 2022 version) provide that communications and decisions about whether the opposition is deemed to have been filed and is admissible are also to be notified to the patent proprietor. Concerning the contentious nature of opposition proceedings, see also parallel cases T 1553/06 and T 2/09 in this chapter IV.C.2.1.4.

According to the principle of party disposition (cf. G 9/92 and G 4/93, OJ 1994, 875), the request of the opponent determines the extent to which the patented subject-matter may be examined in opposition. In T 364/18, for instance, the board saw itself limited to

examining the patent with regard to the claims opposed, in accordance with the principle of *ne ultra petita* (on the extent of opposition, see also chapters [IV.C.2.2.6](#) and [IV.C.3.2](#)).

Opposition proceedings are characterised by the interplay between its nature as contentious proceedings between parties ([G 9/91](#) and [G 10/91](#), OJ 1993, 408 and 420) and the principle of ex officio examination which applies to proceedings before the EPO ([Art. 114\(1\) EPC](#)) and thus also in opposition proceedings ([G 9/92](#) and [G 4/93](#), OJ 1994, 875). Accordingly, in opposition proceedings, the EPO must investigate the facts of its own motion ([Art. 114\(1\) EPC](#)). However, certain restrictions have been placed on this principle in order to make opposition proceedings clearer, to shorten and accelerate cases, and to limit the risks to the parties ([G 9/92](#) and [G 4/93](#), OJ 1994, 875). In particular, ex officio examination has a restricted application with respect to the grounds for opposition: grounds extending beyond those properly covered by the opponent's statement pursuant to [R. 76\(2\)\(c\) EPC](#) are only exceptionally considered ([G 9/91](#) and [G 10/91](#); for details, see chapter [IV.C.3.3](#) and [3.4](#)).

Under the EPC, there is no legal obligation for the patent proprietor to take an active part in opposition proceedings (e.g. in reply to the communications under [R. 81\(3\) EPC](#) or [R. 116\(2\) EPC](#)). However, the patent proprietor is not free to present or complete his case at any time that he wishes during the opposition or opposition appeal proceedings (see e.g. [T 936/09](#) and [T 167/11](#); see also the case law in chapters [IV.C. 5.1.4](#) "Timeframe for filing amendments", [V.A.4.3.4](#) "Discretion under Article 12(4) RPBA 2020", [V.A.4.3.7](#) "Submissions that should have been submitted at first instance – Article 12(6), second sentence, RPBA 2020").

Certain topics relating to opposition proceedings are dealt with in Part III: See chapters [III.Q.](#) "Transfer of party status", [III.P.](#) "Intervention", [III.Q.](#) "Continuation of the opposition proceedings by the EPO" and [III.R.](#) "Apportionment of costs".

2. Filing and admissibility requirements

2.1. Entitlement to file an opposition

2.1.1 General principles

In [G 3/97](#) and [G 4/97](#) (OJ 1999, 245 and 270) it was held that the legislator explicitly designed the opposition procedure as a legal remedy in the public interest which, according to [Art. 99\(1\) EPC](#), is open to "any person".

According to the Enlarged Board, an opponent's status is a procedural status, and the basis on which it is obtained is a matter of procedural law. This is addressed in [Art. 99\(1\) EPC](#) in conjunction with [Art. 100 EPC](#), [R. 76](#) and [R. 77\(1\) EPC](#) ([R. 55](#) and [R. 56\(1\) EPC 1973](#)). The opponent is the person who fulfils the requirements set out therein for filing an opposition; in particular the person must be identifiable ([R. 76\(2\)\(a\)](#), [R. 41\(2\)\(c\) EPC](#); [R. 55\(a\) EPC 1973](#); see also in this chapter [IV.C.2.2.4](#)). The EPC does not specify any further formal conditions to be met by the opponent. A person who fulfils

the said requirements becomes a party to the opposition proceedings (Art. 99(3) EPC; Art. 99(4) EPC 1973).

Thus, the EPC does not require that the opponent have his own interest in the outcome of the opposition proceedings. As early as in G 1/84 (OJ 1985, 299) the Enlarged Board held that the motives of the opponent were in principle irrelevant (otherwise, no doubt, the phrase "any person" would have been rendered as "any person interested"), whilst his identity was primarily of procedural importance (similarly in T 635/88, OJ 1993, 608; T 590/93, OJ 1995, 337). Following that case law, the board in T 798/93 (OJ 1997, 363) found that the EPC and its attendant provisions contained no requirements as to the opponent's personal circumstances or motives for acting. Requests for the opposition to be declared inadmissible therefore had to be refused if, as in the case under consideration, they were based on either an objection regarding a particular aspect of the opponent's status, such as his profession (professional representative before the EPO) or his field of technical expertise (different from that of the opposed patent), or on his lack of motives for acting (statement by the opponent saying that his only reason for acting was to complete his training). See also recent decision T 1839/18, in which the board held that the current system of allowing any person to have a patent reviewed by way of opposition proceedings regardless of any specific interest was in line with the function of patents and with the public's interest in legal certainty and clearing the register of undeserved or undeservedly broad monopolies. The board noted that the case law of the Enlarged Board of Appeal was consistent in this regard.

According to T 353/95, only an existing natural or legal person can be a party to opposition proceedings and this applies also at the appeal stage since Art. 107, first sentence, EPC makes no different provision (R. 66(1) EPC 1973; R. 100(1) EPC). The principle whereby legal entities which do not exist cannot bring or take part in proceedings was also confirmed in G 1/13 (OJ 2015, A42).

2.1.2 Examination at any stage in the proceedings of entitlement to oppose

An objection that an opposition is inadmissible because the opponent was not entitled to file it may be raised at any stage of the proceedings, i.e. even at a late stage before the board of appeal, because the admissibility of the opposition is an indispensable procedural requirement for any substantive examination of the opposition submissions and is therefore to be examined ex officio (see T 289/91, OJ 1994, 649; T 590/94, T 522/94, OJ 1998, 421; T 1178/04, T 384/08). If the board has good reasons for examining the admissibility of an opposition (T 199/92), it may and is obliged to do so, even if the patent proprietor has not challenged admissibility during either opposition or appeal proceedings (T 541/92). In G 3/97 and G 4/97 (OJ 1999, 245 and 270), the Enlarged Board of Appeal reaffirmed that the admissibility of an opposition could be challenged during the appeal proceedings on grounds relating to the identity of an opponent, even if no such objection had been raised before the opposition division.

During the appeal underlying G 1/13 (OJ 2015, A42), the proprietor had challenged the admissibility of the opposition because the opponent company had ceased to exist during the proceedings before the opposition division. By court order, the company was then

restored with retrospective effect. The Enlarged Board held that where an opposition is filed by a company which subsequently, under the relevant national law, ceases to exist, but is subsequently restored to existence under a provision of that national law, by virtue of which the company is deemed to have continued in existence as if it had not ceased to exist, all these events taking place before a decision of the opposition division maintaining the opposed patent in amended form becomes final, the EPO must recognise the retroactive effect of that provision of national law and allow the opposition proceedings to be continued by the restored company (see also chapter V.A.2.4.3 d) "Existence of a company").

For decisions concerning **transfer of opponent status**, see chapter III.O.2.

The status of opponent can also be acquired by an **assumed infringer** who has **intervened** in pending opposition proceedings (see chapter III.P. "Intervention").

2.1.3 Filing of opposition by patent proprietor or inventor

Given the purpose and special nature of the opposition procedure, patent proprietors may not oppose their own patent. In G 9/93 (OJ 1994, 891), the Enlarged Board of Appeal departed from the view taken in G 1/84 (OJ 1985, 299) and held that patent proprietors were not covered by the expression "any person" used in Art. 99(1) EPC 1973. The provisions of Part V of the EPC and the corresponding Implementing Regulations were clearly based on the assumption that the opponent was a person other than the patent proprietor and that the opposition proceedings were always inter partes. The case law established in G 1/84 on this point is thus obsolete.

In T 3/06 the patentee argued, with reference to G 9/93 (OJ 1994, 891), that opponent 2 as the **inventor** of the patent in suit, being a **shareholder** of the patent proprietor, could not validly file an opposition even if the plain language definition of "any person" in Art. 99(1) EPC did not prevent inventors from filing an opposition. The board held the patent proprietor and the opposing inventor to be different persons. The inventor, although a shareholder in the patent proprietor, was not an executive of the company, nor did he have any substantial influence on commercial and judicial decisions concerning the business of the patent proprietor.

A procedure for limitation or revocation of a European patent at the request of the patent proprietor is now provided for under Art. 105a to 105c EPC (see also chapter IV.D.1.).

2.1.4 Filing of opposition on behalf of a third party – straw man

With regard to the question whether an opposition is inadmissible if the opponent is a "straw man" acting for some other person, the Enlarged Board of Appeal clarified in G 3/97 and G 4/97 (OJ 1999, 245 and 270) that the opponent is the person who fulfils the requirements of Art. 99(1) in conjunction with Art. 100 EPC, R. 55 and 56(1) EPC 1973 (R. 76 and 77(1) EPC). Filing the opposition renders this person formally the legitimate opponent. The fact that the opponent is acting on behalf of a third party does not render the opposition inadmissible. It is however inadmissible if the opponent's involvement is to

be regarded as **circumventing the law by abuse of due process**. Such circumvention of the law arises, in particular, if:

- the opponent is acting on behalf of the patent proprietor. According to G 9/93 (OJ 1994, 891), a proprietor cannot oppose his own patent; opposition is an inter partes procedure, so the patentee and opponent must be different persons.

- if the opponent is acting on behalf of a client in the context of activities which, taken as a whole, are typically associated with professional representatives, without possessing the necessary qualifications (Art. 134 EPC 1973). This would be the case if a person not entitled to act as a professional representative were acting on a client's behalf and carrying out all the activities typically carried out by professional representatives, while himself assuming the role of a party in order to circumvent the prohibition on his acting as a professional representative.

However, circumvention of the law by abuse of process **does not arise merely** because a professional representative files an opposition in his own name on behalf of a client. In any case, the principle of the free evaluation of evidence applies. The burden of proof lies with the person alleging that the opposition is inadmissible. The deciding body has to be satisfied, on the basis of clear and convincing evidence, that such abuse is occurring.

Previously relevant case law (see e.g. T 10/82, OJ 1983, 407; T 635/88, OJ 1993, 608; T 25/85, OJ 1996, 81; T 289/91, OJ 1994, 649; T 590/93, OJ 1995, 337; T 798/93, OJ 1997, 363) has been superseded by G 3/97 and G 4/97.

In T 2365/11 the notice of opposition was filed by a natural person; however, in a submission (to indicate the language which would be used during the oral proceedings) the opponent's attorney had referred to a certain company as the opponent. The board held that the opponent was clearly identified in the notice of opposition. Whether or not the correctly identified opponent was acting on behalf of a third person did not affect the admissibility of the opposition. The situations described in G 3/97 (order 1(b) and (c)) as circumvention of the law by abuse of process could be excluded in the present case.

In parallel cases T 1553/06 and T 2/09, involving the same parties but different patents, the board examined whether the parties and their representatives had worked together on a **test case** in order to obtain answers from the EPO to specific legal questions regarding prior art. Following the principles set out in G 9/93 and G 3/97, the board emphasised the contentious nature of opposition proceedings as a necessary condition for the admissibility of the opposition and examined whether an abuse of procedure, i.e. because the opponent acted on behalf of the patent proprietor ("straw man"), rendered the opposition inadmissible. The board could not find a circumvention of the law by abuse of process as it saw no reason to doubt the parties' submissions that the opponent was not bound by any instructions from the patentee or the study committee. An opposition filed within the framework of a test case was not inadmissible for that sole reason, provided that the prosecution of the proceedings thereby instituted was contentious because the parties defended mainly opposing positions.